Google Pay/Google Payments Terms of Service

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These Terms of Service form a legal agreement (i) to the extent of your use of Google Pay (previously Tez) between you and Google India Digital Services Private Limited (Section A) and (ii) to the extent of your use of Google Pay (also referred to as"Google Payments," previously Android Pay) you and Google LLC (Section B).

Your use of Google Pay requires that you agree to the following terms. Please read them carefully. The Terms of Service are divided into the following parts:

A. Google Pay Terms of Service

B. Google Payments Terms of Service

A. GOOGLE PAY TERMS OF SERVICE

1. Introduction

Applicable Terms. Thank you for using Google Pay. For purposes of the Combined Google Pay Terms (defined below), "Google Pay" is a service that is provided to users resident in India by Google India Digital Services Private Limited with registered office at Unit 207, 2nd Floor Signature Tower-II Tower A, Sector 15 Part II Silokhera, Gurgaon, Haryana, India, 122001 ("Google"), and was previously named Tez. By accessing, downloading or using Google Pay, you agree to comply with and be bound by the following:

- the Google Terms of Service (the "Universal Terms");
- this Google Pay Terms of Service for India Residents (the "Google Pay Terms");
- the Google Privacy Policy (the "Privacy Policy").
- the Google Pay Policies (the "Google Pay Policies"); and
- Google Pay Offer Terms of Services ("General Google Pay Offers Terms")

These five documents are collectively referred to herein as the "Combined Google Pay Terms."

Please read each of these Combined Google Pay Terms carefully, starting with the Universal Terms as they contain important information about your legal rights, remedies and obligations. These Combined Google Pay Terms constitute a legally binding agreement between you and Google governing your access to and use of the Google Pay Services (as herein defined). If you do not understand these documents or do not accept any part of them, then you should not use the Google Pay Services. You understand that services may be offered incrementally on Google Pay, and that these Combined Google Pay Terms may be applicable accordingly.

Use of Google Group Companies. You also understand and hereby agree that Google reserves the right to use the services of its Group Companies (as herein defined) to provide any of the Google Pay Services to you, on behalf of Google.

You further understand and agree that Google reserves the right to update any of these Combined Google Pay Terms from time to time. You must ensure that you keep yourself up-to-date and read the Combined Google Pay Terms at close intervals. If there is any conflict between these Google Pay Terms and the Universal Terms, these Google Pay Terms will prevail.

By accepting the Combined Google Pay Terms, you represent and warrant the following:

- You are 18 years of age or older;
- You are capable of entering into a legally binding agreement; and
- You are not barred or otherwise legally prohibited from accessing or using Google Pay under the laws of India.

Third Party Terms and Conditions. Google may facilitate provision of third party products or services to you within Google Pay. In order to use these third party products or services, you may need to accept additional terms and conditions and meet additional requirements.

2. Definitions

Definitions appearing in this Google Pay Terms:

"**Applicable Law**" means all applicable laws, rules, regulations, guidelines, statutory or government notifications including Reserve Bank of India regulations and Payment Participant Rules.

"**BBPOU**" means Bharat Bill Payment Operating Unit operating under the applicable Bharat Bill Payment System regulatory framework.

"**Biller**" means a biller, including Prepaid Service Providers supported by Google Pay for Bill Payment Services either through a biller aggregator or a BBPOU, to whom a User can initiate bill payment on Google Pay.

"**Bill Payment Services**" means the facility provided to Users on Google Pay to view bills or pre-paid plans and make payments to Billers and receive other ancillary services.

"**Credit Card**" means any credit card offered by a Credit Institution to You as per Your agreement with the Credit Institution.

"**Credit Card Services**" means the Google Pay Services for application and management of Credit Cards, and related offers and services offered by Credit Institutions to You.

"**Credit Institutions**" means banks, non-banking financial institutions and other credit providers that have the requisite permissions from the applicable regulatory authorities to provide advances and loans to users.

"**Customer's Bank**" means the bank where the User maintains his/her Funding Account and has linked that Funding Account for the purpose of debiting/crediting the Payment Transactions through UPI.

"**Funding Account**" means a credit card, bank account (through debit card or netbanking), BHIM UPI account or pre-paid payment instrument (such as cash card or e-wallet) that is registered or used by the User to fund Payment Transactions.

"**GAP**" shall mean the Gold Accumulation Plan provided by MMTC.

"**Gold Account**" means an account on Google Pay which has been linked to the GAP.

"**Gold**" means the gold in your GAP account.

"**Google Account**" means the account you create with Google or Group Companies for the use of Google Pay Services and other Google services, as defined in the Universal Terms.

"**Google Group Companies**" or "**Group Companies**" means Google's parent, its subsidiaries and associate companies, and the parent's ultimate holding company and its direct or indirect subsidiaries, including their associate companies.

"**Google Pay Service(s)**" or "**Service(s)**" means the Payment Transaction facilitation services, Bill Payment Services and other services provided by Google through Google Pay App or other platforms.

"**Loan Facility**" means the loans and advances offered by a Credit Institution to You as per Your agreement with the Credit Institution.

"**Loan Facility Services**" means the Google Pay Services for facilitation of Loan Facility from Credit Institutions to You.

"**Merchant**" means a person or entity who/which (i) avails the Google Pay for Business Program; or (ii) provides Google Pay as a payment option to its customers through a Payment Participant; or (iii) uses Google Pay to collect payments from its customers for goods and services purchased from a merchant either offline or through any online platforms.

"**MMTC**" shall mean MMTC-PAMP, a company providing GAP through Google Pay.

"**NPCI**" means the National Payments Corporation of India, that is an authorized payment system operator by the Reserve Bank of India, which owns and operates UPI.

"**P2P Service**" means the Google Pay Services for facilitating P2P payment transactions.

"**P2P Payment**" or "**Peer to Peer Payment**" means a payment initiated by a User using the P2P Service that debits (or charges) a Funding Account of the User (i.e. Sender) and makes the funds available in the Payment Instrument designated by the Recipient.

"**Payment Instrument**" means, including but not limited to, a credit card, debit card, bank account, or prepaid payment instrument, including e-wallets and gift cards issued under Applicable Law, that is eligible for use by a User to fund Payment Transactions or a Recipient to receive payments.

"**Payments System**" shall have the meaning ascribed to it under the provisions of Applicable Law.

"**Payment Participants**" shall mean all the parties involved in the payment system including but not limited to payment/bill aggregators, Payments System Providers, acquiring banks, partner banks, the issuer of the Sender's Funding Account, the issuer bank of the Recipient bank account, the issuer of the Payment Instruments, card associations, NPCI, Reserve Bank of India, etc.

"**Payment Service Provider**" or "**PSP**" is a banking company that is a payment participant, authorized to act as a "Payment Service Provider" under the UPI framework, and engages the TPAP to provide UPI services to the users.

"**Payments System Providers**" means banks, financial institutions, card associations, and other payment system providers (as defined under the Payment and Settlement Systems Act, 2007), with whom Google has entered into an arrangement to facilitate Payment Transactions (as defined below) using Payments System Provider Services.

"**Payments System Provider Services**" means payment gateway system/interface/services provided to route payment instructions to Payments Participants for (i) Card Transactions, (ii) BHIM UPI based Transactions; (iii) net banking, (iv) prepaid payment instrument; and provide authentication and authorization from issuers, card associations, NPCI and/or other third party clearinghouses; and/or (v) provide settlement facilities in respect of payment instructions initiated by the User.

"**Recipient**" means a User, Merchant, Biller or third party who receives a payment from the Sender.

"**Sender**" means a User who uses the Google Pay Services to send a payment to a Recipient.

"**TPAPs**" means Us, a Third Party Application Provider (TPAP) who provides Google Pay, a UPI compliant application to Users to facilitate UPI based payment transactions.

"**Transaction**" or "**Payment Transaction**" means (i) the payment request made by the User for sending or receiving payments; and (ii) the payment instructions provided by the Sender for debit of his/her Funding Account.

"**UPI**" means the Unified Payment Interface.

"**UPI Transaction Data**" means the individual UPI transaction data i.e. data in clear text format.

"**User**" means a person who registers for Google Pay Service(s) including UPI payment facility to send or receive payments.

"**We**", "**we**" or "**us**" means Google.

"**You**", "**you**", or "**your**" means a User.

3. Scope of Google Pay Services

Google Pay ("**Google Pay**" or "**Google Pay App**") is a payment solution application which facilitates Google Pay Service. Through Google Pay, you may send payments to service providers, Users, Merchants, Billers or third parties using any Payment Instruments accepted through Google Pay. You may also receive payments from other Users or third parties in the Payment Instrument you designated in Google Pay to receive funds. In addition, Google Pay allows you to communicate with or receive communications, offers and services from other Users, service providers, Banks, Merchants and Billers. In relation to UPI Payment Transactions, Google Pay is a TPAP authorised by NPCI to facilitate Payment Transactions through HDFC Bank, Axis Bank, ICICI Bank and State Bank of India. We are a service provider and participate in UPI through PSP Banks. We are bound by tripartite agreements entered with NPCI and each of our the sponsor PSP's - HDFC Bank, ICICI Bank, Axis Bank and State Bank of India. For the exact roles and responsibilities of Google Pay, PSP and NPCI in a UPI Payment Transaction, please refer here. For the avoidance of doubt, in relation to UPI Transactions, you are subject to that PSP's terms and conditions.

Google Pay may facilitate provision of third party products or services to you within Google Pay. These third party products or services are offered by parties other than Google, and are subject to third party terms. You may need to accept additional terms and conditions and meet additional requirements to use these third party services. You should

only transact with a third party product or service that you trust. Google will not be responsible or liable to you for any loss incurred by you as a result of your interaction with a third party product or service on Google Pay.

Mechanics of Payment Transaction. The Payment Transactions or any communication/offers carried out through Google Pay are solely between the Sender and Recipient of the payment. Google Pay creates a link between the Sender, the Recipient and the respective Payments System Providers to facilitate sending and/or receiving payments using Payments System Provider Services. Once a Payment Transaction has been authenticated, authorised and processed through the Payments System Provider Services:

(i) the payment may be settled directly with the Recipient by the respective Payments Participants; or

(ii) in certain scenarios, we may act as an intermediary and receive funds pertaining to the Payment Transaction on behalf of the Recipient. In such scenarios, Google would operate purely as the Recipient's payment collection agent for the limited purpose of accepting funds from Users.

Google's Role in Payment Transactions. You understand and agree to the following:

- Google is only a facilitator of Payment Transactions.
- Google is not a party to these Payment Transactions.
- Google is not a Payments System Provider.
- Google may, in certain scenarios, act as an intermediary and operate as a payment collection agent for the limited purpose of receiving funds on behalf of the Recipient.
- Google is not and will not be responsible for any aspect of the products or services you purchase.
- Google is not and will not be responsible for any communications made by you or any communication or offers made to you through Google Pay.
- Google is not a party to and will not be responsible for any disputes, chargebacks or reversals arising pursuant to Payment Transactions.
- Google is not responsible for any act of Users, including, non-completion of a Transaction.
- The facilitation of a Transaction does not guarantee that the Sender has sufficient funds available in the Funding Account he or she used, that the Transaction will be authorized or processed, or that the Transaction will not later result in a chargeback or other reversal.
- Google is neither acting as a trustee nor acting in a fiduciary capacity with respect to any Payment Transaction.
- Google does not determine, advise or in any manner control the commercial terms of the Payment Transaction, including the price of products and services offered for sale.

Disclaimer of Google's Liability. Google is not responsible for any aspect of the products or services you purchase or for any communications or offers made to you. Google's role as a payment collection agent for the Recipient will not make Google liable or responsible for breach of representations and warranties, non-provision of after-sales or warranty services or fraud vis-a-vis the products and/or services sold by a Merchant.

Bill Payment Services. Google Pay facilitates bill payment services that allow You to view Your bills or eligible pre-paid plans and make payments to Billers through the Google Pay App. You understand that the Bill Payment Services provided through Google Pay are either provided (i) by a Bharat Bill Payment Operating Unit ("BBPOU") under the Bharat Bill Payment System ("BBPS") infrastructure, where the Biller is registered with NPCI to participate within BBPS; or (ii) by a Biller aggregator with whom Google has entered into a contractual arrangement. You further understand that Google Pay only facilitates bill presentment and bill payment and is either (i) an agent of the BBPOU in accordance with Applicable Law, where the Biller is registered with NPCI for BBPS; or (ii) a bill payment facilitator.

Credit Card Services. Google Pay provides a technology platform for display of Credit Card offers from Credit Institutions to You. You understand and agree that the terms of any such Credit Card shall be governed by the terms of the agreements executed between You and the Credit Institution for such Credit Card. Google is not a party to such agreements and has no role and does not make any representations, warranties or guarantees of approval or decline of the Card Application, which shall be at the sole discretion of the Credit Institution issuing the Credit Card. Google's role vis-a-vis such Credit Cards shall be limited to providing technology services related to Credit Cards offered by Credit Institutions and collaborating with Credit Institutions to provide services and offers related to Credit Cards that may be uniquely available to Google Pay users (e.g., Axis Bank ACE Card, which is issued by Axis Bank and marketed in collaboration with Google).

Loan Facility Services. Google Pay provides a technology platform for display of Loan Facility offers from Credit Institutions to You. You understand and agree that the terms of such Loan Facility shall be governed by the loan agreements executed between You and the Credit Institution. Google is not a party to such loan agreements and Google's role in such transactions shall be limited to that of an intermediary technology platform.

Google Pay Gold Services. Google Pay provides a technology platform to MMTC - PAMP ("MMTC") to offer Gold for sale, delivery and repurchase and other related services by MMTC to the Customers. You agree and acknowledge that the terms and conditions available at MMTC Terms govern your GAP. Google will have no liability to You in relation to Your GAP.

4. Your Use of Google Pay

Age Restrictions. You must be 18 years of age or older, in order to use Google Pay. If you allow anyone to use your Google Account on Google Pay, including individuals under 18 years of age, you will be responsible for ensuring that such individuals comply with the Combined Google Pay Terms. You will be responsible for all actions these individuals take in and/or through your Google Account on Google Pay.

Territorial Restrictions. To use Google Pay, you will need to be physically located in India when registering or linking your Google Account on Google Pay, have an Indian bank account and an Indian mobile number. The Google Pay App should not be used outside of India.

Basic Use Requirements. You will need a mobile, internet or any other supported device ("Device") that meets certain system and compatibility requirements, which may change from time to time to use Google Pay. Your ability to use Google Pay and the performance of Google Pay App may be affected by these factors. You agree that you are responsible for such requirements, including any applicable changes, updates, fees and all other terms provided under your agreement with your mobile device and telecommunications provider. Google will not be responsible for any lapse of security or failed Transactions due to your internet or Device service provider.

Updates. You may need to install updates to your Google Pay App or related Google software that Google introduces from time to time to access, use, or continue to use Google Pay Services. Your Google Pay App may communicate with Google servers from time to time to check for available updates to Google Pay, such as bug fixes, patches, enhanced functions, missing plug-ins and new versions (collectively, "Updates"). Your use of Google Pay requires that you have agreed to receive such automatically requested Updates. If you do not agree to such automatically requested and received Updates, then please do not use the Google Pay App. Notwithstanding the foregoing, Google may update the Google Pay App to a new version of such app, irrespective of any update settings that you may have selected within the Google Pay App or your device, if Google determines that the update will fix a critical security vulnerability related to the Google Pay App.

5. Setting Up Google Pay Services

You must have a Google Account to use Google Pay. If you do not already have a Google Account, you can register for one on Google Pay. When you login to your Google Account on Google Pay, your Google Pay Services will be activated, subject to you accepting these Combined Google Pay Terms. If you disable your Google account, all related accounts, including your Google Pay account will be suspended. You can seek restoration of the Google Account, which will also restore your access to your Google Pay Account. It is possible that as a result of disabling the Google Account by you, some account specific data may be lost or purged and may not be retrievable. You agree and accept that Google is not responsible for the loss of data or any other damage suffered by you as a result of the closure of the Google account by you and its subsequent restoration.

During the login/registration process or anytime thereafter, you may be asked to provide information such as your name, phone number, Payment Instrument information (including, but not limited to, your bank name and bank account number, credit card/debit card details, if applicable), date of birth, and/or other registration information. We may verify your registration information with a Payment Participant, service provider, and/or Third Party Provider, as defined below. In some cases, we may ask you to send us additional information/documentation or to answer additional questions (before or after your Google Account on Google Pay has been activated) to help us verify your identity or the accuracy of the information you provided. The provision and use of such data is subject to the Google Privacy Policy, as described more fully in Section 18 below. We may deny your use of the Google Pay Services, if we are unable to verify that the accuracy or completeness of the information and documentation you provided or we determine that you are not eligible to use Google Pay, pursuant to the Combined Google Pay Terms or the Payment Participant Rules.

Setting up BHIM UPI Services. If you desire to use BHIM UPI to send or receive payments, you may use Google Pay to register with a BHIM UPI Payments System Provider partnered with Google and create your BHIM UPI user credentials, such as your BHIM UPI ID (virtual payment address) and/or BHIM UPI PIN (MPIN) linked. Once you have registered for BHIM UPI services, you can send payments from your bank account or receive payments into your bank account using BHIM UPI through Google Pay.

Setting up a Virtual Account Number. You may also use Google Pay to make Payment Transactions using a bank-issued virtual account number representing a credit or debit card you register with Google Pay, transit passes, and digital wallets or accounts that you have with companies other than Google (each a "Virtual Account Number"). Virtual Account Numbers may be used: (i) at participating merchant locations, using a QR code through your Google Pay App that resides on your mobile device, or (ii) online through certain merchant apps, or (iii) on your Google Pay app for processing bill payments or other merchant Payment Transactions. Google Pay does not store the actual number of the underlying debit card or credit card and only saves the Virtual Account Number.

After you have begun to add a Virtual Account Number to Google Pay, Google Pay will check whether the payment method is eligible. If your payment method's issuer supports Google Pay and your payment method is eligible, when adding it you may see a screen asking you to accept the issuer's terms and conditions. Once you have done so and successfully added the payment method, Google Pay will store a Virtual Account Number representing your payment method's actual card number or other identifier with your Google Account for use with Google Pay.

Except where Google or its affiliate is the issuer, neither Google nor its affiliates are a party to your payment methods' user agreement, privacy policy, or other terms of use. Nothing in these Combined Google Pay Terms modifies any such issuer terms. In the event of any inconsistency between these Combined Google Pay Terms and your issuer's terms or privacy policy, these Combined Google Pay Terms will govern the relationship between you and Google with respect to Google Pay, and your issuer's terms will govern the relationship between you and the issuer. Google does not make any representation or verify that any of your payment methods is in good standing or that the issuer of your payment method will authorize or approve any transaction with a merchant or transit provider when you use Google Pay for that transaction.

Except where Google or its affiliate is the issuer, neither Google nor its affiliates are involved in issuing credit or determining eligibility for credit, nor do they exercise control over: the availability or accuracy of payment methods or funds; the provisioning (or addition) of payment methods to Google Pay, or addition of funds to payment method balances. Your Issuer provides services to register or deregister your Virtual Account Number for specific uses and to set and modify Payment Transaction limits. For any concerns relating to the foregoing, please contact your payment method's issuer.

Setting up Bill Payment Services. To use the Bill Payment Services, You may be required to provide us with your bill account information for Billers with whom You would like to make payments (such as your customer account number, registered phone number or customer ID) and any other information necessary for us to access Your account and bill/plan details with such Billers ("Bill Payment Account Information"). By using the Bill Payment Services, You expressly authorize Google Pay to access, use and store Your Bill Payment Account Information and bill details on an ongoing basis, on Your behalf for the purpose of providing Bill Payment Services to You.

If you use the Bill Payment Services to provide Bill Payment Account Information, to fetch bill details, or make payments on behalf of a third party, including for mobile recharges/top ups, it is your responsibility to ensure that you have the consent of such third party. You agree that you have all necessary rights and permissions to allow Google Pay to use third party Bill Payment Account Information on an ongoing basis and access the bill details from the respective Biller, on behalf of the third party for the purpose of Google Pay providing Bill Payment Services. You agree that as between Google Pay and you, any claim raised by the third party will solely lie against you.

Accuracy of Information. You understand and agree that you are responsible for the accuracy of the information you provide for fetching a bill and/or making a payment request, including the Bill Payment Account Information and the amount of the Transaction.

Setting up of Gold Account. To set up your Gold Account, You must complete (i) 2 factor authentication as may be required by Google; and (ii) comply with the registration process prompted by Google on Google Pay; and (iii) comply with the KYC requirements as may be mandated by Applicable Law.

By using Google Pay, You confirm that Your Gold Account is being set-up in Your own name and You do not have more than one Gold Account in Your name.

For cumulative lifetime purchases of Rs. 50,000 (Indian Rupee Fifty Thousand) or above or in case of initiating any transfers for Rs. 50,000 (Indian Rupee Fifty Thousand) or above, You will be required to provide a copy of Your PAN Card. In such case, You confirm and acknowledge that You have provided a true copy of Your PAN Card and it has not been forged or tampered. You acknowledge that any obligation to pay taxes on cashback amounts is fully your responsibility.

You authorize Google to make such enquiries as they may feel necessary to satisfy itself about the validity of Your identity. You undertake to update Google in case of change of Your existing information or verification documents

provided by You.

Google will ask You for details of a nominee at the time of setting up Your Gold Account. In case of Your demise, the nominee, subject to providing valid documentation, will be allowed to claim the Gold in Your Gold Account.

6. Payment Participants and Third Party Providers

Communications with Payment Participants. By electing to use Google Pay, you authorize Google to communicate with Payment Participants or any Third Party Provider or service provider to provide or obtain any information, including your personal information, for the purpose of processing Transaction or providing Google Pay Services or for risk management and fraud assessment purposes. You understand that Google may also share any message that you send other Users, Merchants, Billers, at the time of requesting or making a Payment Transaction with the Payment Participants as may be required by and in accordance with Applicable Laws.

Compliance with Payment Participants' Rules. As you will be using Payment Participants' services to process your payment instructions, you consent and agree to comply with the rules, guidelines, directions, instructions, requests, etc. issued by the respective Payment Participants from time to time ("Payment Participant Rules"). You acknowledge and agree that You are responsible for keeping yourself up-to-date and complying with all such Payment Participant Rules. If You fail to comply with the obligations imposed on You by Google or the Payment Participants, we may suspend or terminate your Google Account on Google Pay. For the avoidance of doubt, the Payment Participant Rules are between you and the respective Payment Participant. Google is not liable for any actions or inactions of such Payment Participants.

Google's Use of Third Party Providers. In addition, Google may have arranged for third party providers to provide products or services to you through Google Pay ("Third Party Providers"). In order to use these products or services, you may be required to agree to additional terms and conditions from such Third Party Providers, and may be subject to additional requirements of the Third Party Provider. By agreeing to these Combined Google Pay Terms or continuing to use Google Pay Services, you hereby agree to any Third Party Provider terms that apply to your use of such products and services through Google Pay, which may be updated from time to time. For the avoidance of doubt, the Third Party Provider terms are between you and the applicable Third Party Provider, not Google. Google is not liable for any actions or inactions of such Third Party Providers.

7. Fees

Payment Participants or Third-Party Fees. You may incur access or data fees from the Payment Participants or Third Party Providers in connection with your use of Google Pay. You are responsible for all such fees.

Google Fees. Fees may be applied to certain Transactions or use of Google Pay Services. Prior to completing each Transaction, you will be notified of any fees that may apply. Fees may be determined by Google in its sole discretion and any fees charged will be inclusive of all applicable taxes.

8. Transactions using Google Pay Services

Limitations on the Use of the Google Pay Service. We or Payment Participants may establish general practices and limits concerning the use of Google Pay. We reserve the right to change, suspend or discontinue any aspect of Google Pay at any time, including hours of operation or availability of Google Pay Services or any Google Pay Service feature, without notice and without liability. We also reserve the right to impose limits on certain features or restrict access to parts or all of the service without notice and without liability. We may decline to process any Payment Transaction without prior notice to Sender or Recipient. We also reserve the right to automatically block any communication received by a User from a non-Google Pay account, including any payment requests, that we deem to be spam or a fraudulent communication.

We do not warrant that the functions contained in Google Pay will be uninterrupted or error free, and we shall not be responsible for any Service interruptions (including, but not limited to, power outages, system failures or other interruptions that may affect the receipt, processing, acceptance, completion or settlement of Payment Transactions).

Transaction Limits. Each Transaction is subject to minimum and maximum Transaction limits that may be set by Google, a User, the Payment Participants or as may be prescribed under the provisions of Applicable Law. In addition, Google and the Payment Participants may also reject/suspend Transactions (in whole or in part) on your Google Account on Google Pay based on their respective policies and assessment.

Transaction Records. Records of your Transactions will be reflected in your conversation history and Transaction history in your Google Pay App. You are responsible for reviewing your Transaction activity to determine if there are any errors or unauthorised Transactions, and for alerting Google of such event, in accordance with the Combined Google Pay Terms.

Transacting with Virtual Account Numbers. When you initiate a Virtual Account Number payment or transit transaction using Google Pay, Google may pass details of your Virtual Account Number and related information to the transacting party so that it can charge your payment method. A Virtual Account Number transaction may be initiated when you: use tap-and-pay in stores or on transit services using NFC, scan barcodes, or QR codes, or other contactless technology; select “Google Pay” or “Buy with Google Pay” as a payment option in an online transaction on the third party’s website or app; or transact with the Third Party through some other online interface, such as via the Google Assistant. When you initiate an online transaction, Google Pay may also share other information, such as a billing, shipping, or email address saved in your Google Account, where relevant to completing the transaction.

After passing the payment method and other details to the third party, Google will have no further involvement in the transaction as between you and the third party, and you acknowledge and agree that such transaction is solely between you and the third party and not with Google or any of its affiliates. You should contact the third party or your payment method provider (for example, the issuer of your Payment Instrument) directly regarding any issues with Virtual Account Number transactions, including refunds and disputes.

You acknowledge that Google Pay may receive transaction information, including transaction location information, from your payment method’s issuer to display richly formatted transaction details and your recent transaction history in Google Pay.

Permissible Transactions. You may only use Google Pay Services to process a Transaction to make payment for legitimate and bona fide purposes including purchase of goods and services. You may not use Google Pay Service to process Payment Transactions in connection with the sale or exchange of any illegal goods or services or any other underlying illegal Transaction.

You agree that you will not use the Google Pay Service to process Transactions that violate the Combined Google Pay Terms, Payment Participant Rules, Applicable Law or other policies or rules applicable to Google Pay Services. You should review the Google Pay Policies to understand the rights and obligations that you may have with respect to your Google Pay Transactions. The Google Pay Policies establish the purposes for which Google Pay Services may not be used to make or receive payments. Failure to comply with the Google Pay Policies and the restrictions thereunder may result in rejection of your Transaction or suspension or termination of your use of Google Pay Service.

9. Bill Payment on Google Pay

Bill Presentment. Once you register a Biller on your Google Pay App, You may be able to view your current and future bill details or eligible recharge plans or statement from that Biller as and when they are available. Ensure that you check your bill details carefully prior to making any payments. In case of any discrepancies, please contact Your Biller.

Scheduling your Bill Payments. Payment realisation time will vary depending upon the Biller you select. When Google Pay receives a payment instruction from you, you authorize us to send instructions to Payments System Providers to debit your Funding Account and remit payment to the said Biller on your behalf. Payments are subject to the policies and procedures of such Billers and Payment Participants. We are not liable for (i) delays in payment realisation by the Biller; (ii) delay, failure or reversal of Transactions; or (iii) your failure to schedule payment dates in a timely manner. You are responsible for any consequences resulting from late payment including the levy of a late fee charge or any other penalty by such Biller.

Bill Reminders. In addition to your own records of bill payment requirements, Google Pay may also send you reminders to pay your bill. This will help you schedule your bill payments in time.

Payment History. You may access information about your bill payment requests through the Google Pay App. You should always verify and confirm Your bill payment requests against any statements or payment records provided by the Biller.

Prepaid Recharges. Google Pay facilitates the recharge of Your prepaid mobile, data or other accounts. The actual mobile, data or any other service service is provided by the prepaid service providers like telecommunications service provider whose account You hold ("Prepaid Service Providers"), or by their distributors and aggregators and not by Google Pay. You hereby agree that You will be solely responsible for selecting an appropriate plan as may be offered by the Prepaid Service Providers, and for compliance with its terms. You understand that the plans provided on Google Pay are for reference purposes only. The plans may not be up-to-date and may have changed. You must check with your Prepaid Service Provider for the latest plans and details prior to making a transaction.

Ad-hoc Bill Payments. You may also choose to enter an ad-hoc amount for bill payment or recharging, however acceptance of it will be solely at the discretion of the Biller. You are responsible for the accuracy of the details entered by You to make a payment or recharge your account. You further agree that Google Pay will not be liable for any failure on the part of any Biller in effecting a recharge or other bill payment or for any issue related to the quality of service provided by the Biller, and any dispute relating to the same shall be resolved directly between you and the Biller.

Refunds. Refund of payment amount for bill payment including mobile recharge or for any payment debited from your account for which the bill payment or recharge is not delivered, will be solely as per the terms or policies of the Biller, and you agree that Google Pay will not be responsible for the same.

10. Loan Facility Services on Google Pay

Loan Facility Offers. You agree that Credit Institutions may send You offers pertaining to Loan Facilities for which you are eligible. You acknowledge that Your eligibility for the Loan Facility including the terms and quantum of the Loan Facility shall be at the sole discretion of the Credit Institution. Google is not responsible for the content of such offer or for the Loan Facility.

Applying for Loan Facility Services. To apply for a Loan Facility offered to you by the Credit Institutions, You are required to accept the offer and fill in a loan application provided by the Credit Institution on Google Pay. Depending upon the respective Credit Institution, You may be able to select your preferred Loan Facility Amount and Equated Monthly Instalments ("EMI") plan including its tenure. Further, you may be required to provide certain personal information including but not limited to your name, address, phone number, IP address, the loan amount, tenure and EMI plan selected by You, the purpose of the loan, and such other information that may be required by the Credit Institution.

You are responsible to ensure that your KYC details with the Credit Institutions are current and accurate at the time of applying for the Loan Services Facility on the Google Pay App.

You understand that You are availing the Loan Facility Services from your Credit Institution and will be entering into a loan agreement with the Credit Institution for this purpose. Google is in no manner involved in or liable for offering or providing you with the Loan Facility, or with the performance of the loan agreement.

Fees and Charges. You understand that the Credit Institution may charge you a service fee for instant processing of the Loan Facility and stamp duty charges, which will be specified to you in the loan application, and deducted from the Loan Facility amount.

Carefully Review your Loan Application. You are responsible to ensure that you understand all the terms in the loan agreement and carefully review the same including interest rate, EMI plan and other charges of the Loan Facility prior to completing and submitting the application. Please ensure that you review and confirm all Loan Facility Information provided either by You or by the Credit Institution in the course of applying for the Loan Facility. Please note that the final amounts of EMI, service fees and stamp duty as may be applicable, are determined by the Credit Institution. Google will not be responsible for any error or discrepancy that may have been confirmed by you during the application process or for the performance of the loan agreement. For any rectification of any discrepancy, you will be required to engage directly with the Credit Institution.

Loan Facility Presentment. Once Your application is successfully approved by the Credit Institution, you can view the receipt for the Loan Facility ("Loan Facility Receipt") on your Google Pay App. The Loan Facility Receipt may consist of information such as name, address, the application date, Loan Facility amount, the interest rate, tenure, the number of EMIs, fees and charges and such other information as provided or confirmed by You during the loan application process. Any discrepancy in the Loan Facility Receipt will have to be addressed with the Credit Institution.

Disbursement of Loan Facility Amount. The Loan Facility amount will be directly credited into Your account held with the Credit Institution.

EMI Payment Reminders. You agree that Your Credit Institution may send you communications regarding the Loan Facility including reminders to pay Your EMI through the Google Pay App.

Repayment of Loan Facility Amount. Upon EMI due date, the EMI payment amount will be directly debited by Your Credit Institution from your account held with them. You are responsible for maintaining sufficient funds in your account, and for any penal consequences that result from the performance of the loan agreement or insufficiency of funds to meet the EMI requirements including the levy of interest as per the terms of the loan agreement executed by You with the Credit Institution.

By availing of the Loan Facility Services on Google Pay, You expressly authorize Google Pay to access, use and store Loan Facility transaction information on an ongoing basis, on Your behalf for the purpose of providing you with services on Google Pay.

11. Credit Card Services on Google Pay

You agree that Google or the Credit Institutions may send You offers pertaining to Credit Cards and related offers or services for which you are eligible. You acknowledge that Your eligibility for a Credit Card shall be at the sole discretion of the Credit Institution and based on its customary procedures and credit underwriting criteria developed by the Bank and will be subject to approval or rejection solely at the discretion of the Credit Institution.

Applying for Credit Cards. To apply for a Credit Card offered to you by a Credit Institution, You are required to submit the application provided by the Credit Institution on Google Pay. You may be required to provide certain personal information including but not limited to your name, address, phone number, income range, employment information, and such other information that may be required by the Credit Institution. You are responsible to ensure that your KYC details with the Credit Institutions are current and accurate at the time of applying for a Credit Card on the Google Pay App.

You understand that You are availing the Credit Card from your Credit Institution and will be entering into an agreement with the Credit Institution for this purpose. Google is in no manner involved in or liable for offering or providing you with the Credit Card.

Carefully Review your Credit Card Application. You are responsible to ensure that you understand all the terms governing your Credit Card under the Credit Card agreement between You and your Credit Institution prior to completing and submitting the application. Google will not be responsible for any error or discrepancy that may have been confirmed by you during the application process and will not be responsible for the provision of the Credit Card or the accuracy of any information related to the Credit Card that is provided by a Credit Institution. For any rectification of any discrepancy related to your Credit Card, or to close or terminate your Credit Card, you will be required to engage directly with the Credit Institution per the terms of Your Credit Card agreement with the Credit Institution.

By availing of the Credit Card Services on Google Pay, You expressly authorize Google Pay to access, use and store your Credit Card transaction information on an ongoing basis, on Your behalf, for the purpose of providing you with services on Google Pay, including displaying such transaction information to you, sending you offers pertaining to your Credit Card and related offers or services for which you are eligible, and to assist with fraud analytics and fraud mitigation efforts.

12. Gold Account

Limits on holding or Purchase of Gold. Google may impose limits on the amount of Gold that is held in your GAP account or the amount you could transact on GPay to accumulate Gold in your GAP account.

Suspension and Termination of GAP Accounts. Google reserves the right, in our sole and absolute discretion, to (a) suspend access to Your Gold Account; or (b) request MMTC to terminate your GAP Account, without notice and without liability to you or any third party, for any reason, including submission of incorrect KYC details, fraud, violation of these Combined Google Pay Terms or other policies we may establish from time to time. In such event, Google may take any action it deems necessary including crediting Your bank account and having MMTC repurchase Your Gold.

Hosting Information. Google will display such information on Google Pay, from time to time, as may be provided and updated by MMTC in relation to the Gold for general information purposes. Google shall neither be liable nor be responsible for the accuracy of such information which is provided by MMTC.

Payment Transaction. All Payment Transactions initiated on the Gold Account shall be subject to the Combined Google Pay Terms. For avoidance of doubt, Google will provide the technology integration of the GAP with Your Google Account on Google Pay. However, all Gold Transactions are conducted between You and MMTC only. Google shall neither be responsible nor liable for any losses arising out of or in relation to any Gold Transaction.

Storage of Information. By opening a Gold Account on Google Pay, You expressly authorize Google Pay to access, use and store Gold transaction information and other information related to Your Gold Account on an ongoing basis for the purpose of providing you with services on Google Pay.

13. Communication services

You are able to send messages via Google Pay. You are responsible for any communication made by you with other service providers, Users, Merchants, or Billers through Google Pay. Google merely provides the platform to enable you and other service providers, Users, Merchants or Billers to communicate with each other (Communication Platform) and is not responsible for any conversation between the parties. You must ensure that no illegal, unlawful or unauthorised communication is delivered through Google Pay. The content of the communication must comply with these Combined Google Pay Terms and in particular, the Google Pay Policies. You agree not to make any offers, promotions or advertisements to other Users directly through the Communication Platform. Google reserves the right to suspend or terminate your use of Google Pay Services, in whole or in part, in the event of any communication that is not in compliance with the Google Pay Policies or these Combined Google Pay Terms. Google reserves the right through automated means, to collect, store, use, access your Google Pay communications for the purposes outlined in Section 16.

14. Offers

Google Pay Offers. Your participation in Google Pay offers is subject to the General Google Pay Offers Terms.

Merchant/Biller Offers. Offers provided to you by Merchants or Billers on Google Pay are between you and the Merchant or Biller, Google is not responsible for the content of such Offers or for the fulfilment of such offers.

15. Refunds, Chargebacks, and Disputes

Refunds and Chargebacks. Except as set forth in these Combined Google Pay Terms, all Transactions processed through the Google Pay Services are non-refundable to the Sender by Google Pay and are non-reversible by the Sender through the Google Pay Services. You may have additional refund or chargeback rights under your Payment Instrument issuer agreement or under applicable regulations. You should review the statements you receive from the issuer of your Payment Instrument which should reflect all Transactions through the Google Pay Services.

In the event that the Sender's Payment Instrument issuer requests a chargeback for a Transaction, Google reserves the right to reverse the Transaction amount. Google further retains the rights to set-off any chargeback amount from subsequent payments to be transferred to the Recipient.

Disputes. You understand that a payment Transaction is solely between the Sender and the Recipient and Google does not provide any guarantees or warranties with respect to any User, Biller, Merchant, third party or any service, good or delivery level commitment provided by such User, Biller, Merchant or third party. Use of Google Pay Services in no way represents any endorsement by Google of any User, Biller, Merchant or third party. You should ensure that you have undertaken adequate due diligence prior to transferring payments to anyone using Google Pay Services. Any dispute is between the Sender and Recipient without making Google and/or the Payments System Providers, a party to such disputes. However, in relation to UPI Payment Transactions, we are responsible for facilitating grievances / complaints resolution for Users. We shall be the first point of contact for all UPI Payment Transaction related grievances/complaints for Users. In case the complaint or grievance remains unresolved, the next level for escalation will be the PSP, followed by the Customer's Bank and lastly NPCI. After exercising these options you can approach the Banking Ombudsman and or the Ombudsman for Digital Complaints, as the case may be.

In addition, if you choose to use your BHIM UPI or Credit Card credentials created through Google Pay to send payments to a merchant or third party who is not using Google Pay Services for the purpose of processing and/or settlement of funds, Google's role will be limited to providing the payment instructions to the Payments System Provider. Google will neither be responsible for the processing or settlement of the Transaction nor for any delivery or service fulfilment, provided Google may, in certain circumstances, act as a payment collection agent for the Recipient for the limited purpose of receiving funds on the Recipient's behalf. It is your responsibility to ensure that the correct information has been provided by you or that you have selected the correct Recipient.

Google is not obligated to mediate disputes between Senders and Recipients or between the Sender/Recipient and the Payment Participants. However, Google will assist Users in communicating with each other regarding a dispute or in sending the User's complaint to the respective Payment Participant, if required under Applicable Laws or Payment Participant Rules. In the event of any complaints regarding Google Pay Services, please contact Google and we will work with you to resolve it, where possible.

Waiver and Release. You agree to release Google and Group Companies, and their agents, contractors, officers and employees, from all claims, demands and damages (actual and consequential) arising out of or in any way connected with a dispute. You agree that you will not involve Google in any litigation or other dispute arising out of or related to any transaction, agreement, or arrangement with any Recipient, Sender, advertiser or other third party in connection with the Google Pay Service. If you attempt to do so, (i) you shall pay all costs and attorneys' fees of Google, and Group Companies and shall provide indemnification as set forth below, and (ii) the jurisdiction for any such litigation or dispute

shall be limited as set forth below. However, nothing in these Combined Google Pay Terms shall constitute a waiver of any rights, claims or defenses that you may have with respect to a Payment Transaction under the respective Payment Participants Rules or Applicable Laws.

16. Fraud or Unauthorized Use

All Transactions made or instructions provided through Your Google Account on Google Pay shall be deemed to be provided by You. You will be solely responsible for any unauthorised access or use of Your personal or financial information through Your Google Account on Google Pay. To help prevent unauthorised use of your Google Account on Google Pay, You should comply with the security measures recommended by Google. If you believe your Google Account on Google Pay has been accessed or used in an unauthorised manner, please contact Customer Service immediately.

17. Risk Monitoring: Unusual or Suspicious Transactions

We may monitor your Transactions for high-risk practices or for fraudulent transactions. We may also engage Third Party Providers or other service providers to assist in these efforts and other elements of Google Pay Services. If we have reason to believe that there is suspicious or unusual activity being carried out through your Google Account on Google Pay, we may temporarily or permanently suspend your access to Google Pay Services.

We and/or the Payment Participants may reject a Transaction and/or settlement of payments for various reasons, including but not limited to risk management, suspicion of fraudulent, illegal or doubtful Transactions, selling of prohibited items, use of compromised or blacklisted cards or BHIM UPI accounts, Google Accounts on Google Pay, chargebacks/complaints or for other reasons as prescribed in the Payment Participant Rules. In the event that a Transaction is rejected or is unable to be completed, we will either transfer the funds back to the Sender's Funding Account or will handle the funds in accordance with Applicable Laws or Payment Participants Rules.

In addition, we may take any such action on a Google Account on Google Pay as may be required by a statutory or governmental authority or as may be mandated by the respective Payment Participant.

18. Privacy and Communications

Privacy. In addition to other clauses in the Combined Google Pay Terms, you agree and specifically consent that we may collect, store, and use your personal data and any communications made through Google Pay, in accordance with Applicable Laws and our Privacy Policy.

Google may share your payments related information, including UPI Transaction Data, with Merchants, Banks, Third Party Providers and service providers as required for the purpose of operations, settlement payment processing, and promoting Google Pay Services.

Your UPI Transaction Data will not be used for any monetisation purpose (eg. for advertisements) by any entity other than Google (in other words, Google India Digital Services Private Limited).

If you are a Recipient, you agree and specifically consent that Google may store your information including bank account number on Google Pay for the purpose of sending you payments.

You agree and specifically consent that Google may, through automated means, access your Google Pay navigational, log, and correspondence information/data. This information/data will help us analyze the merchants, markets, technology, operating systems, browsers, devices, locations from/for which our Google Pay Services are used. For example, such information and its analysis will help us to better understand your needs and provide you with a wider range of services, or developing updates for particular operating systems and mobile application versions, etc. The information collected also helps us offer you other products, programs, or services including Offers as provided by Merchants or Billers that we believe may be of interest to you or alert you in case of software compatibility issues.

You agree and specifically consent that Google may, through automated means, access your messages on your mobile device/mobile number and retrieve/use information from your messages to provide you with enhanced services by Google or Group Companies. For example: OTP is a one-time password which is provided by your issuing bank in order to carry out the second factor authentication. If you allow us to access your messages, you understand that we may retrieve your OTP from the message received on your mobile device/number and populate and submit the OTP for second factor authentication.

You represent that you have obtained all requisite prior consents and waivers necessary from any third party or Recipients and have provided such third party or Recipient with notice to permit Google, Group Companies and Payment Participants to carry out actions described in this paragraph. You further warrant that you will provide such notices and secure such necessary consents and waivers in advance of providing similar information to Google in the future.

If you choose to delete or wipe-out any information or data from Google Pay or your Google Account or you or Google choose to terminate the use of your Google Account or Google Pay Services, you understand that we may still retain, use and/or disclose such information/data for legal reasons detailed in the Google Privacy Policy.

The Google Privacy Policy explains how we treat your personal data and protect your privacy when using Google Pay.

Communications from or with Google. You agree and specifically consent to the collection, storage and use of your information for communications from or with Google. You agree and specifically consent that we may, on our own or through third parties, send you emails, SMS, or communicate with you through other means, for:

(i) providing you with Google Pay Services and transactional or account related information;

(ii) sending you payment related reminders/updates;

(iii) promoting Google Pay Services or other Google services;

(iv) promoting Group Companies' services or our Third Party Providers' services, including any offers or schemes or prizes that may be provided by these entities. These promotions will not use your UPI Transactions Data;

(v) promoting new products and activities;

(vi) investigating or resolving any product or Google Pay Service related concerns including complaints; or

(vii) obtaining your invaluable feedback.

In order to serve you better, we may also send you surveys to understand: (i) your experience with our Services, and/or (ii) your needs and requirements.

You may choose to, or we may invite you to, submit comments or ideas about Google Pay Services, including without limitation about how to improve the Service or our products. By submitting any idea, you agree that your disclosure is gratuitous, unsolicited and without restriction and will not place us under any fiduciary or other obligation, and that we are free to use the idea without any additional compensation to you, and/or to disclose the idea on a non- confidential basis or otherwise to anyone.

19. USE AND PROTECTION OF INTELLECTUAL PROPERTY RIGHTS

Google Pay Services are protected by copyright, trademarks, patents, trade secret and/or other intellectual property laws. Google LLC owns the title, copyright and other worldwide intellectual property rights in the Google Pay Services. These Combined Google Pay Terms do not grant you any rights to the intellectual property rights in the Google Pay Services. Nothing contained herein shall authorize the Users to use, apply, invade or in any manner exploit or infringe the intellectual property rights of Google or its Group Companies without prior written consent. You are hereby given a limited license to use the Google Pay Service, subject to your agreement of these Terms. If you are a Merchant wanting to use Google Pay to accept payments from your end users through the BHIM UPI Infrastructure, your limited right to use the Google Pay Trademarks and Google Pay Logos will be as per these Google Pay Brand Guidelines.

When You upload, submit, store, send or receive content that may include feedback to or through Google Pay App, you give Google a worldwide, perpetual license to use, host, store, reproduce, modify, create derivative works (such as those resulting from translations, adaptations or other changes we make so that your content works better with Google Pay Services), communicate, publish, publicly perform, publicly display and distribute such content. This license shall not revert back to you even if it is not used by Google. The rights you grant in this license are for the limited purpose of operating, promoting, and improving Google Pay Services, and to develop new ones. This license continues even if you stop using Google Pay Services.

20. Responsibility for Taxes

The reporting and payment of any applicable taxes arising from the use of Google Pay Services is your responsibility. You hereby agree to comply with any and all applicable tax laws in connection with your use of Google Pay Services,

including without limitation, the reporting and payment of any taxes arising in connection with Payments made through Google Pay Services, or funds/income received through Google Pay Services

21. Indemnification

You agree to indemnify, defend and hold harmless Google, Group Companies, the Payment Participants, and its and their directors, officers, owners, agents, co-branders or other partners, employees, information providers, licensors, licensees, consultants, contractors and other applicable third parties (collectively "**Indemnified Parties**") from and against any and all claims, demands, causes of action, debt or liability, including reasonable attorney fees, including without limitation attorneys fees and costs incurred by the Indemnified Parties arising out of, relating to, or which may arise from:

(a) your use of the Services;

(b) any breach or non-compliance by you of any term of these Google Pay Terms or any Google Pay policies;

(c) any dispute or litigation caused by your actions or omissions; or

(d) your negligence or violation or alleged violation of any applicable law or rights of a third party.

22. Disclaimer

THE SERVICES, INCLUDING ALL CONTENT, SOFTWARE, FUNCTIONS, MATERIALS, AND INFORMATION MADE AVAILABLE ON, PROVIDED IN CONNECTION WITH OR ACCESSIBLE THROUGH THE SERVICES, ARE PROVIDED "AS IS." TO THE FULLEST EXTENT PERMISSIBLE BY LAW, GOOGLE, AND GROUP COMPANIES, AND THEIR AGENTS, CO-BRANDERS OR OTHER PARTNERS, INCLUDING BUT NOT LIMITED TO, DEVICE MANUFACTURERS (COLLECTIVELY, "**GOOGLE PARTIES**"), MAKE NO REPRESENTATION OR WARRANTY OF ANY KIND WHATSOEVER FOR THE SERVICES OR THE CONTENT, MATERIALS, INFORMATION AND FUNCTIONS MADE ACCESSIBLE BY THE SOFTWARE USED ON OR ACCESSED THROUGH THE SERVICES, OR FOR ANY BREACH OF SECURITY ASSOCIATED WITH THE TRANSMISSION OF SENSITIVE INFORMATION THROUGH THE SERVICES. EACH GOOGLE PARTY DISCLAIMS WITHOUT LIMITATION, ANY WARRANTY OF ANY KIND WITH RESPECT TO THE SERVICES, NONINFRINGEMENT, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE. GOOGLE DOES NOT WARRANT THAT THE FUNCTIONS CONTAINED IN THE SERVICES WILL BE UNINTERRUPTED OR ERROR FREE. GOOGLE SHALL NOT BE RESPONSIBLE FOR ANY SERVICE INTERRUPTIONS, INCLUDING BUT NOT LIMITED TO SYSTEM FAILURES OR OTHER INTERRUPTIONS THAT MAY AFFECT THE RECEIPT, PROCESSING, ACCEPTANCE, COMPLETION OR SETTLEMENT OF PAYMENT TRANSACTIONS, P2P PAYMENTS OR THE SERVICES.

THE GOOGLE PARTIES ARE NOT RESPONSIBLE FOR THE ACCURACY OF ANY PAYMENT INSTRUMENT, INCLUDING WITHOUT LIMITATION WHETHER SUCH INFORMATION IS CURRENT AND UP-TO-DATE. WITHOUT LIMITING THE GENERALITY OF THE PRECEDING SENTENCE, YOU EXPRESSLY ACKNOWLEDGE AND AGREE THAT SUCH INFORMATION IS REPORTED BY THE ISSUER AS OF A PARTICULAR TIME ESTABLISHED BY THE ISSUER AND MAY NOT ACCURATELY REFLECT YOUR CURRENT TRANSACTIONS, AVAILABLE BALANCE, OR OTHER ACCOUNT OR PROGRAM DETAILS AT THE TIME THEY ARE DISPLAYED TO YOU THROUGH THE SERVICES OR AT THE TIME YOU MAKE A PURCHASE OR REDEMPTION. YOU MAY INCUR FEES, SUCH AS OVERDRAFT FEES OR OTHER CHARGES AS A RESULT OF SUCH TRANSACTIONS, PER YOUR AGREEMENT WITH YOUR ISSUER, OR YOUR ATTEMPT TO MAKE A PURCHASE OR REDEMPTION MAY NOT BE SUCCESSFUL.

23. Limitations of Liability; Force Majeure

IN NO EVENT SHALL GOOGLE OR ITS GROUP COMPANIES BE RESPONSIBLE OR LIABLE TO YOU OR ANY THIRD PARTY UNDER ANY CIRCUMSTANCES FOR ANY INDIRECT, CONSEQUENTIAL, SPECIAL, PUNITIVE OR EXEMPLARY, DAMAGES OR LOSSES, INCLUDING BUT NOT LIMITED TO DAMAGES FOR LOSS OF PROFITS, GOODWILL, USE, DATA, OR OTHER INTANGIBLE LOSSES WHICH MAY BE INCURRED IN CONNECTION WITH ANY GOOGLE PARTY OR THE SERVICES, OR ANY GOODS, SERVICES, OR INFORMATION PURCHASED, RECEIVED, SOLD, OR PAID FOR BY WAY OF THE SERVICES, REGARDLESS OF THE TYPE OF CLAIM OR THE NATURE OF THE CAUSE OF ACTION, EVEN IF THE GOOGLE PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE OR LOSS. IN NO EVENT SHALL THE GOOGLE PARTIES' TOTAL CUMULATIVE LIABILITY ARISING FROM OR RELATING TO THESE COMBINED GOOGLE PAY TERMS EXCEED THE NET FEES GOOGLE HAS ACTUALLY RECEIVED AND RETAINED FROM YOUR

VALID TRANSACTIONS DURING THE THREE MONTH PERIOD IMMEDIATELY PRECEDING THE DATE OF THE CLAIM.

Nothing in these Google Pay Terms is intended to exclude or limit the liability of any party for (i) death or personal injury; (ii) fraud; (iii) fraudulent misrepresentation; or (iv) any liability that cannot be excluded or limited by law.

You and Google acknowledge that each party has entered into these Combined Google Pay Terms relying on the limitations of liability stated herein and that those limitations are an essential basis of the bargain between the parties. In addition to and without limiting any of the foregoing, no Google Party shall have any liability for any failure or delay resulting from any condition beyond the reasonable control of such party, including but not limited to governmental action or acts of terrorism, earthquake, fire, flood or other acts of God, labor conditions, power failures and Internet disturbances.

24. Termination and Suspension

We reserve the right, in our sole and absolute discretion, to suspend or terminate your use of one or more Google Pay Services, without notice and without liability to you or any third party, for any reason, including without limitation inactivity or violation of these Combined Google Pay Terms or other policies we may establish from time to time.

25. Advertising

Some of the Google Pay features may be supported by advertising revenue and may display advertisements and promotions. In consideration for Google granting you access to and use of the Services, you agree that Google may place such advertising and promotions.

26. Governing Law; Jurisdiction

The Google Pay Terms and Google Pay Policies will be governed by and construed in accordance with the laws of India. You agree that any legal action or proceedings arising out of the aforementioned documents may be brought exclusively in the competent courts/tribunals having jurisdiction in New Delhi, India and irrevocably submit themselves to the jurisdiction of such courts/tribunals. You understand that We may need to share information that you provided on Google Pay in order to satisfy applicable law, regulation, legal process or an enforceable governmental request.

27. Modification of Terms of Service

We have the right, in our sole and absolute discretion, to change, modify, or amend any portion of the Combined Google Pay Terms at any time. The changes will become effective, and shall be deemed accepted by you, after the initial posting and shall apply on a going-forward basis with respect to transactions initiated after the posting date. In the event that you do not agree with any such modification, your sole and exclusive remedy is to terminate your use of the Services.

In addition, we reserve the right at any time to modify or discontinue, temporarily or permanently, the Google Pay App or Services (in whole or in part) with or without notice. We may also change the Services, including applicable fees, in our sole discretion. If you do not agree to the changes, you may stop using the Services. Your use of the Services, after implementation of the change(s) will constitute your agreement to such change(s). You agree that we shall not be liable to you or to any third party for any modification, suspensions, or discontinuance of the Services.

28. English Language Controls

Any translation of these Combined Google Pay Terms is provided for your convenience. The meanings of terms, conditions and representations herein are subject to the definitions and interpretations in the English language. Any translation provided may not accurately represent the information in the original English.

29. Assignment

These Combined Google Pay Terms and any rights and licenses granted hereunder, may not be transferred or assigned by you. We may assign, in whole or in part, the benefits or obligations of this Agreement. We will provide an intimation of such assignment to you, which will be binding on the parties to these Terms and Conditions.

30. Waiver

Unless otherwise expressly stated in this Agreement, the failure to exercise or delay in exercising a right or remedy under the Combined Google Pay Terms will not constitute a waiver of the right or remedy or a waiver of any other rights or remedies, and no single or partial exercise of any right or remedy under the Combined Google Pay Terms will prevent any further exercise of the right or remedy or the exercise of any other right or remedy.

31. Survival of Provisions

The terms and provisions of the Combined Google Pay Terms, which by their nature and content are intended to survive the performance hereof by any or all parties hereto will so survive the completion and termination of this Agreement.

32. Severability

If any provision of the Combined Google Pay Terms is or becomes, in whole or in part, invalid or unenforceable but would be valid or enforceable if some part of that provision was deleted, that provision will apply with such deletions as may be necessary to make it valid. If any court/tribunal of competent jurisdiction holds any of the provisions of the Combined Google Pay Terms unlawful or otherwise ineffective, the remainder of the Combined Google Pay Terms will remain in full force and the unlawful or otherwise ineffective provision will be substituted by a new provision reflecting the intent of the provision so substituted.

B. GOOGLE PAYMENTS TERMS OF SERVICE

1. Introduction

For purposes of these Google Payments Terms of Service, "Google Pay" is a service that is provided to users resident in India by Google LLC with a registered office at 1600 Amphitheatre Parkway, Mountain View, California 94043 ("Google"), and was previously named Android Pay. Google Pay is subject to the Google Terms of Service ('Google ToS') and is a 'Service' as defined in the Google ToS. The following Google Payments Terms of Service are additional terms that apply to the use of Google Pay. Your use of Google Pay is subject to these Google Payments Terms of Service and the Google ToS (which together, for purposes of these Google Payments Terms of Service, we refer to as the 'Terms'). The Google Payments Privacy Notice describes how Google handles your payments info.

If there is any conflict between the Google Payments Terms of Service and the Google ToS, the Google Payments Terms of Service shall prevail. If there is any conflict between the English-language version of the Terms and a version translated into another language, the English-language text shall prevail.

Certain Google Pay features were previously branded 'Android Pay'. While you may continue to see legacy references to Android Pay in shops, in apps or on websites, those features are subject to these Terms.

Your use of Google Pay under this Section B requires that you agree to the following terms. Please read them carefully. Some products and features may not be available in all countries. Please see the Google Payments Help Center for more information.

2. Basic requirements

By agreeing to the Terms, you represent that you are:

- At least as old as the age specified here; and
- capable of entering into a legally binding agreement with Google.

You will also need a Google Account; a device that meets the Service's system and compatibility requirements, which may change from time to time; working Internet access; and compatible software. Your ability to use Google Pay, and Google Pay's performance, may be affected by these factors. Such system requirements are your responsibility.

3. General description of Google Pay

Google Pay lets you save the following to your Google Account, manage them in one place and transact with Google and third parties using them:

- Credit cards, debit cards and other kinds of payment methods that you can use to pay in shops, in apps, on the web and in other ways;
- Public transport passes for use on trains, buses and other forms of transport ('Public Transport Passes'); and

- Coupons, loyalty cards, boarding passes, movie tickets and other kinds of passes that you have saved to Google Pay ('Passes').

4. Payment methods

(a) Types of payment methods

With Google Pay, you can save and manage various kinds of payment methods in your Google Account (collectively, 'Payment Methods'), including:

- Payment cards such as credit, debit and prepaid cards ('Payment Cards')
- Bank-issued virtual account numbers or virtual card numbers representing your Payment Cards ('Virtual Card Numbers' or 'Virtual Account Numbers')
- Bank accounts
- Operator billing accounts
- Gift cards
- Public Transport Passes
- Digital wallets or accounts that you have with companies other than Google ('Linked Third-Party Accounts')
- Japanese eMoney cards stored on your device

Availability of a given Payment Method or its compatibility with Google Pay may depend on your country of residence and other factors. The compatible Payment Method types, as well as the Payment Method uses and Google Pay features described below may not be available everywhere, and may change at any time.

(b) Saving a Payment Method

You may be able to save a Payment Method to your Google Account through a variety of user interfaces, including the Google Pay app or website, the Google Chrome browser, the Payment Method issuer's app or website or through a Google product or service such as the Google Play Store. In order to save a Payment Method, you must complete all required information on any registration forms presented to you. The information that you provide must be current, complete and accurate, and you must maintain it as such. We may require you to provide additional information as a condition of continued use of Google Pay, or to help us determine whether to permit you to continue using Google Pay, including but not limited to two factor authentication.

When you save a Payment Method, Google may store information relating to the Payment Method, such as your name and billing address. Google Pay also allows you to save other information to your Google Account that can help speed up transactions, such as a delivery address. Google Pay does not store credit card details for any tokenization service offered in India.

You authorise us to confirm that your Payment Method is in good standing with its provider, including, but not limited to, by submitting a request for a payment authorisation and/or a low-value credit and/or debit to the Payment Method, in accordance with network rules or other requirements applicable to the Payment Method. You agree that Google Pay is for your personal use, with your own Payment Methods. If you use Google Pay with an eligible corporate card, you agree that you are doing so with your employer's authorisation and with the ability to bind your employer to these Terms.

(c) Google's role

Except where Google or its affiliate is the issuer, neither Google nor its affiliates are a party to your Payment Methods' cardholder agreements, privacy policy or other terms of use. Nothing in these Terms modifies any such issuer terms. In the event of any inconsistency between these Terms and your issuer's terms or privacy policy, these Terms will govern the relationship between you and Google with respect to Google Pay, and your issuer's terms will govern the relationship between you and the issuer. Google does not make any representation or verify that any of your Payment Instruments is in good standing or that the issuer of your Payment Instrument will authorise or approve any transaction with a merchant or public transport provider when you use Google Pay for that transaction.

Except where Google or its affiliate is the issuer, neither Google nor its affiliates are involved in issuing credit or determining eligibility for credit, nor do they exercise control over: the availability or accuracy of Payment Methods or funds; the provisioning (or addition) of Payment Methods to Google Pay, or addition of funds to Payment Method balances. For any concerns relating to the foregoing, please contact your Payment Method's issuer.

(d) Saving a Virtual Card Number, Public Transport Pass, Linked Third-Party Account or Japanese eMoney card

The following additional terms apply when using Google Pay to save a Virtual Card Number, Public Transport Pass, Linked Third-Party Account or Japanese eMoney card to your Google Account.

After you have begun to add a Payment Instrument to Google Pay and provided the information requested by Google and/or your Payment Method issuer, Google Pay will check whether the Payment Method is eligible to be used with Google Pay. All of a participating issuer's Payment Methods may not be eligible. If your Payment Method's issuer supports Google Pay and your Payment Method is eligible, when adding it you may see a screen asking you to accept the issuer's terms and conditions. Once you have done so and successfully added the Payment Method, Google Pay will store a Virtual Card Number representing your payment card's actual card number, or associate your Public Transport Pass, Linked Third-Party Account or Japanese eMoney card with your Google Account, for use as described in Section 5 below.

Virtual Card Numbers that you register using Google Pay are distinct from any associated Payment Cards that you save to your Google Account. Unlike a Virtual Card Number, a Payment Card will generally not be presented to you with card art resembling the associated physical card, and cannot be used for in-store Near-Field Communication ('NFC') transactions. However, when you register a Virtual Card Number, Google Pay may also save the associated Payment Card in your Google Account as well.

You acknowledge that Google Pay may receive transaction information from your Payment Method's issuer to display richly formatted transaction details and your recent transaction history in Google Pay.

A Payment Method may be removed from Google Pay on a given device and become unusable with the Service if: (i) you delete the Payment Method from Google Pay; (ii) you delete the Payment Method from your Google Account; (iii) you erase your mobile device using Android Device Manager; (iv) you delete your Google Account; (v) your mobile device fails to connect to any Google product or service for 90 consecutive days; (vi) you do not use Google Pay on the device for 12 consecutive months; and/or (vii) your Payment Method's issuer or payment network instructs Google to remove the Payment Method from Google Pay.

5. Transacting with Payment Methods

(a) On Google properties

Google Pay may allow you to initiate a payment transaction with a 'Seller', defined as: (i) a Google group company or (ii) any other seller participating in one or more of Google's marketplaces (including those listed here) that offers merchandise, goods or services for sale to you, and that requests Google or its affiliates to process payment transactions on its behalf.

You acknowledge and agree that your transaction with a Seller (a 'Google Transaction') is solely between you and the Seller. Google and its affiliates are not party to your Google Transactions and related purchases, nor are they buyer or seller in connection with any Google Transaction, unless expressly designated as such (for example, in the listing or description of the relevant merchandise, good or service on a Google-operated website or interface).

When you initiate a Google Transaction, Google may present your available Payment Methods to you at the time of transaction. After you select the Payment Method that you wish to use, Google may charge that Payment Method, or else share the Payment Method and related details with one of its affiliates or a third party payment processor, which will then process the transaction on behalf of the Seller. You authorise the charge or debit to your Payment Method as necessary to complete processing of a Google Transaction. You also authorise any crediting to your Payment Method in connection with reversals, refunds or adjustments related to a Google Transaction. In the event of any grievances relating to transactions where Google or its affiliate charges the Payment Method and processes a transaction on behalf of the Seller, please reach out to Google helpline.

For details or terms relating to a specific Google Transaction, including refund or dispute resolution policies, or a transaction with a third party payment processor, please refer to the terms of service, help centre or other support materials provided by the Seller with whom you transacted.

If there is a problem charging your selected Payment Method, Google may charge any other valid Payment Method that you have saved to Google Pay. Visit the Google Pay website, Google Pay app or Google settings on your Android device to manage your payment options. You also agree that a Seller may resubmit a Google Transaction for a purchase to the payment network for processing one or more times in the event that a prior Google Transaction is declined or returned by the payment network. Google may delay payment processing of suspicious transactions or transactions that may involve fraud, misconduct or violate applicable law, the Terms or other applicable Google policies, as determined at Google's sole and absolute discretion.

If a Seller offers you the ability to pay for subscriptions, your subscription will start when you click 'accept and buy' (or an equivalent phrase) on a subscription purchase. This is a recurring billing transaction. Unless otherwise stated, your subscription and the relevant billing authorisation will continue indefinitely until cancelled by you. By clicking 'accept and buy' (or equivalent), you authorise the Seller to bill your chosen Payment Method each designated billing period for the subscription. The Google Transaction amount is subject to change by the Seller during the subscription period. Cancellation of a subscription will not become effective until the end of the current billing period. You will not receive a refund for the current billing period and will continue to be able to access the relevant subscription for the remainder of the current billing period.

(b) With third parties

When you initiate a payment or public transport transaction using Google Pay with any party other than a Seller (such party is a 'Third Party' and such transaction is a 'Third-Party Transaction'), Google may pass details of your Payment Method and related information to the Third Party so that it can charge your Payment Method. Depending on the nature of the Third Party, a Third-Party Transaction may be for the purchase of goods or services, for public transport rides or for other purposes, such as charitable donations or gifts. A Third-Party Transaction may be initiated when you: use tap-and-pay in shops or on public transport services using NFC, barcodes or other contactless technology; select 'Google Pay' or 'Buy with Google Pay' as a payment option in an online transaction on the Third Party's website or app; or transact with the Third Party through some other online interface, such as via the Google Assistant. When you initiate an online transaction, Google Pay may also share other information, such as a billing, delivery or email address saved in your Google Account, where relevant to completing the transaction.

In a Third-Party Transaction, after passing the Payment Method and other details to the Third Party, Google will have no further involvement in the transaction, and you acknowledge and agree that such transaction is solely between you and the Third Party and not with Google or any of its affiliates. You should contact the Third Party or your Payment Method provider (for example, the issuer of your Payment Card) directly regarding any issues with Third-Party Transactions, including refunds and disputes.

When you visit a participating Third Party's website or app, Google may disclose to the Third Party whether or not you have Google Pay set up on your device so that the Third Party knows whether to offer you Google Pay as a payment option. You can opt out of Google making this disclosure in Google Pay privacy settings. Opting out could affect your ability to use Google Pay with certain merchants.

(c) As part of Chrome or Android AutoFill

If you have enabled the 'AutoFill' feature on the Google Chrome browser or on your Android device, Google Pay may also present you with the option of automatically filling your saved Payment Method and address information in a Third-Party website's payment form on the Chrome browser, or in a Third-Party app's payment form on an Android device. (For more information on how AutoFill works with Google Pay, consult the Chrome Help Centre). When you use this feature, Google is not interacting with the Third-Party website or app, and is only completing your request to automatically fill certain selected information in a Third-Party form. Google has no involvement in any transaction that you complete using Chrome or Android AutoFill, and you acknowledge and agree that such transaction is solely between you and the Third Party and not with Google or its affiliates. You should contact the Third Party or your Payment Method issuer directly regarding any issues with a transaction in which you used Chrome or Android AutoFill.

6. Google Pay Passes

Google Pay may also enable you to store and access Passes, which are not Payment Methods and may include vouchers, coupons or other similar content that can be redeemed at participating merchants; cards for membership, affinity or rewards programmes that you have already registered for or may register for via Google Pay; tickets or passes for travel, entertainment and other uses; and gift cards redeemable at a specific merchant shops or group of shops (i.e. closed-loop gift cards). A participating provider of a Pass ('Provider') may update the Pass with information or otherwise communicate with you through the Pass.

By redeeming a Pass with a Provider, whether through NFC, barcode or any other means, you authorise the information regarding that specific Pass to be transferred to the Provider for redemption. Your use of a Pass with a Provider is a transaction between you and the Provider, and not with Google or any of its affiliates. Google is not a party to your use of a Pass with its Provider. Google does not guarantee, and is not liable for, the accuracy of any content on a Pass or of the usability of a Pass with any Provider.

7. Governing Law; Jurisdiction

California law will govern all disputes arising out of or relating to these Terms, regardless of conflict of laws rules. These disputes will be resolved exclusively in the federal or state courts of Santa Clara County, California, USA, and you and Google consent to personal jurisdiction in those courts.